

Website Development *Agreement*

Professional Services Agreement between Williams Digital and the Vestlake Communities at Liberty Park Homeowners Association

EFFECTIVE DATE
Upon Acceptance

VERSION
1.0

JURISDICTION
State of Alabama

Parties

This Website Development Agreement (the "**Agreement**") is entered into by and between:

SERVICE PROVIDER

Williams Digital, a digital services and web development firm specializing in website design, development, hosting setup, and related digital solutions.

Contact: **Dylan@williamsdigital.io**

CLIENT

Vestlake Communities at Liberty Park Homeowners Association, a residential homeowners association located in Vestavia Hills, Alabama, acting through its Board of Directors.

Scope of Services

The Service Provider agrees to design, develop, and deploy a custom community website for the Association. The project includes the following deliverables:

- ♦ **Homepage** — A mobile-friendly landing page featuring community announcements, quick-access tiles, and a seasonal pool-reservation toggle.
- ♦ **Five Core Pages** — Home, Community Calendar, Newsletters, Documents, and Resources, custom-branded in the Association's forest-green, gold, and cream palette.
- ♦ **Interactive Community Calendar** — A monthly events calendar for board meetings, community gatherings, and deadlines.
- ♦ **Newsletter Publishing** — A simple workflow allowing board members to add a title and month and publish a newsletter without coding.

- ◆ **Documents Hub** — A page for HOA bylaws, covenants, meeting minutes, and other official documents.
- ◆ **Community Resources Page** — A single-page hub for trash schedules, utility contacts, board contacts, and emergency numbers.
- ◆ **HOA Dues & ARC Links** — Quick-access links to the Association's external dues-payment provider and architectural-review (ARC) submission portal.
- ◆ **Pool Reservation Link** — A seasonal reservation link surfaced on the homepage and navigation.
- ◆ **Admin Content Management System (CMS)** — Configuration of a GitHub-based, no-code editor (Decap CMS) enabling board members to update content directly.
- ◆ **Domain & Hosting Setup** — Assistance registering a domain in the Association's name, and configuration of free hosting via GitHub Pages with automatic HTTPS.
- ◆ **Content Migration** — Transfer of existing newsletters, documents, and contact information provided by the Board into the new site.

Training & Documentation

The Service Provider will conduct **one (1) live training session** (recorded for future reference) and provide a written cheat-sheet showing board members how to publish newsletters, add calendar events, and update content via the admin panel.

Revision Policy

The project includes up to **three (3) rounds of revisions** during the design and development phase. A revision round consists of a consolidated set of feedback submitted at one time by the Board's designated point of contact. Additional revision rounds beyond the included three will be billed at the Service Provider's hourly rate of **\$50/hour**. Revisions must be requested within **seven (7) days** of receiving a design proof or deliverable; otherwise, the deliverable will be considered approved.

Change Orders & Scope Changes

Any work requested by the Board that falls outside the scope described above — including additional pages, custom integrations, or new features — will require a written **Change Order**. The Service Provider will provide a quote for the additional work, and no work will commence until the Board approves the Change Order in writing. Change Orders may affect the project timeline and will be billed separately from the build fee.

Fees and Payment

In consideration of the services provided, the Association agrees to compensate the Service Provider as follows:

Build Fee — Total \$1,200.00 USD

A one-time flat build fee of **\$1,200.00 USD** covers the complete website design, development, content migration, CMS configuration, domain and hosting setup, training, and launch. This fee is split into two installments:

- ♦ **Deposit — \$600.00 USD** due upon acceptance of this Agreement. Work begins after the deposit is received.
- ♦ **Final Payment — \$600.00 USD** due upon launch of the live website to the Association's domain.

No Monthly Retainer

This is a one-time build with **no monthly hosting or maintenance retainer**. Hosting is provided free of charge through GitHub Pages, and ongoing content updates are made by the Board through the admin panel at no additional cost. The Association is responsible only for its annual domain registration fee (approximately **\$15.00 per year**) paid directly to its domain registrar.

Optional Future Support

Should the Board later request additional development, new features, design changes, or hands-on support beyond the 30-day post-launch support window (Section 5), such work may be quoted as a separate Change Order or billed at the Service Provider's hourly rate of **\$50/hour**. There is no obligation to purchase ongoing support.

Payment Methods

Payment shall be submitted via the secure payment link(s) provided by the Service Provider, or by another method mutually agreed upon by the parties. Payment details and instructions will be included on the invoice.

Payment Terms

The deposit is due in full upon acceptance of this Agreement. The final build payment is due upon launch of the live website. A late fee of **1.5% per month** may be assessed on any balance remaining unpaid beyond thirty (30) days from the invoice date. The Service Provider reserves the right to delay or suspend services for any account with an outstanding balance exceeding thirty (30) days.

Cancellation & Refund Policy

Should the project be cancelled by the Board after work has commenced, the **\$600.00 deposit is non-refundable** as it covers discovery, planning, and development work already performed. If the project is cancelled prior to launch, no final build payment shall be owed. If the Service Provider cancels before any work has been performed, the full deposit will be refunded.

Ownership & No Vendor Lock-In

Upon receipt of full payment of the build fee, the Association shall **own all custom-designed deliverables**, including the website files, source code, content, and the GitHub repository. The domain is registered in the Association's name, and the Board retains full administrative control of its hosting account and repository. There is **no vendor lock-in**: the Board may continue to operate, edit, or transfer the website independently at any time. The Service Provider retains the right to use general techniques, tools, and methodologies developed during the engagement. Third-party assets (fonts, stock images, open-source software) remain subject to their respective license agreements.

Portfolio & Credit Rights

The Service Provider retains the right to **display and reference** the completed website in their professional portfolio, marketing materials, case studies, and social media. A small, unobtrusive credit line (e.g., "Built by Williams Digital") may be placed in the website footer. If the Board wishes to opt out of the credit line, this must be agreed upon in writing prior to launch.

Project Timeline

The Service Provider will aim to complete the project within approximately **four (4) weeks** from receipt of the signed Agreement and deposit, subject to timely delivery of content and feedback from the Board:

- ◆ **Week 1** — Design and mockups for Board review.
- ◆ **Week 2** — Build-out of all five core pages.
- ◆ **Week 3** — Content loading and CMS configuration.
- ◆ **Week 4** — Launch, training session, and the start of the post-launch support window.

This timeline is a good-faith estimate. Delays in providing content, feedback, or approvals may extend the schedule accordingly, and the Service Provider shall not be held liable for such delays.

Board Responsibilities & Support

To facilitate the effective delivery of services, the Association, acting through its Board, agrees to:

- ◆ Provide **timely, accurate, and complete** content, documents, newsletters, contact information, and branding materials as reasonably requested.
- ◆ Designate a **primary point of contact** on the Board for all matters relating to this engagement.
- ◆ Respond to communications, design proofs, and requests for approval within a reasonable timeframe.
- ◆ Ensure that all content, documents, images, and materials provided are owned by the Association or properly licensed for use.
- ◆ Maintain the Association's own accounts for its dues-payment provider, ARC portal, and domain registrar.
- ◆ Designate which board member(s) will hold administrative access to the website and GitHub repository following launch.

Delays or failure to meet these responsibilities may impact the timeline and effectiveness of the services provided.

Post-Launch Support

The Service Provider will provide **thirty (30) days of complimentary post-launch support** beginning on the date the website goes live. This support covers bug fixes, configuration questions, and guidance on using the admin panel. Support beyond this window is optional and may be quoted separately as described in Section 3.

Project Pause & Board Inactivity

If the Board becomes unresponsive or fails to provide requested materials, feedback, or approvals for a period of **fourteen (14) consecutive days**, the project may be placed on hold. Projects paused for more than **sixty (60) days** may be treated as cancelled under the Cancellation & Refund Policy outlined in Section 3.

Launch Sign-Off

Prior to the public launch of the website, the Service Provider will present the completed site to the Board for **final review and approval**. The Board shall have **five (5) business days** to review and provide written approval or submit final revision requests. Upon Board approval, the Service Provider will proceed with launch and the final build payment of \$600.00 will become due. If the Board does not respond within this period, the website will be deemed approved.

Term and Termination

This Agreement shall become effective upon acceptance by the Board and shall remain in effect until completion of the agreed-upon services and the conclusion of the post-launch support window, unless earlier terminated as follows:

Termination by Either Party

Either party may terminate this Agreement at any time by providing **fourteen (14) days** written notice to the other party. Upon termination, the Service Provider will provide the Association with all completed deliverables and the source code created to date, and assist with a reasonable transition.

Termination for Cause

Either party may terminate this Agreement immediately upon written notice if the other party materially breaches any provision and fails to cure such breach within **five (5) days** of receiving written notice.

Effect of Termination

Upon termination, the Association shall pay the Service Provider for all services rendered up to the effective date of termination. The Service Provider will deliver all completed work product and provide reasonable assistance for transition.

Limitation of Liability

The Service Provider provides professional digital services with reasonable care and industry-standard practices. To the maximum extent permitted by applicable law:

- ♦ The Service Provider shall not be liable for any **indirect, incidental, special, consequential, or punitive damages** arising out of or related to this Agreement.
- ♦ The Service Provider's total aggregate liability under this Agreement shall not exceed the **total fees paid by the Association** under this Agreement.
- ♦ The Service Provider is not responsible for **third-party service disruptions** including GitHub Pages outages, domain registrar issues, or changes to the Association's dues-payment, ARC, or pool-reservation platforms.
- ♦ The Association is responsible for maintaining **backups of its own content** and for safeguarding administrative credentials to its accounts and repository.

The Service Provider makes no guarantees regarding specific business outcomes, search engine rankings, or website traffic resulting from the services provided.

Warranty Disclaimer

All services and deliverables are provided "**as-is**" and "**as-available**." The Service Provider makes no warranties, express or implied, including but not limited to warranties of merchantability, fitness for a particular purpose, or uninterrupted, error-free operation of any website or digital product.

Association Content Indemnification

The Association agrees to **indemnify, defend, and hold harmless** the Service Provider from any claims, damages, losses, liabilities, or expenses arising from content, documents, images, or materials provided by the Association or its members, or from the Association's enforcement of its own covenants and policies.

Accessibility Disclaimer

The Service Provider builds websites using **modern web standards and best practices** to support accessibility. However, full compliance with WCAG 2.1 AA or the ADA is **not guaranteed** unless a dedicated accessibility audit has been explicitly contracted in a separate Statement of Work.

Confidentiality

Both parties acknowledge that in the course of this engagement, confidential information may be disclosed, including resident contact information and Association documents. Each party agrees to:

- ◆ Maintain the **confidentiality** of all non-public information received from the other party.
- ◆ Not disclose, reproduce, or distribute any confidential information to any third party without the prior written consent of the disclosing party, except as required to perform the services.
- ◆ Use confidential information solely for the purposes of fulfilling obligations under this Agreement.

This confidentiality obligation shall survive the termination of this Agreement and continue for a period of **three (3) years** following termination or expiration.

Dispute Resolution & Governing Law

In the event of any dispute, the parties agree to first attempt to resolve the matter through **good faith negotiation**. If the dispute cannot be resolved within thirty (30) days, the parties agree to submit the dispute to **binding arbitration** in accordance with the rules of the American Arbitration Association, conducted in the State of Alabama.

This Agreement shall be governed by and construed in accordance with the **laws of the State of Alabama**, without regard to its conflict of laws principles. Any legal proceedings related to this Agreement shall be conducted within the appropriate jurisdictions of the State of Alabama.

General Provisions

- ♦ **Entire Agreement** — This Agreement constitutes the entire agreement between the parties and supersedes all prior agreements, understandings, and representations.
 - ♦ **Amendments** — This Agreement may only be amended or modified in writing, signed by both parties.
 - ♦ **Authority** — The individual signing on behalf of the Association represents that they are authorized by the Board of Directors to enter into this Agreement on the Association's behalf.
 - ♦ **Severability** — If any provision is found to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.
 - ♦ **Waiver** — The failure of either party to enforce any right or provision shall not constitute a waiver of such right.
 - ♦ **Assignment** — Neither party may assign this Agreement without the prior written consent of the other party.
 - ♦ **Force Majeure** — Neither party shall be liable for delays or failures in performance resulting from causes beyond their reasonable control.
-

Acknowledgment & Signatures

By signing below, each party acknowledges that they have read, understood, and agree to be bound by the terms and conditions set forth in this Website Development Agreement.

Service Provider — Williams Digital

Signature

Printed Name

Date

Client — Vestlake Communities HOA

Signature (Authorized Board Member)

Printed Name & Title

Date